

Court No. - 21

Case :- WRIT - C No. - 11176 of 2024

Petitioner :- Ghanendra Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Akhilendra Yadav

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. At the request of learned counsel for the petitioner, adjourned to 16.04.2024 as a fresh case.

2. In the meantime, counsel for the respondent-Electricity Department to obtain instructions.

Order Date :- 5.4.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. Shri Mukesh Kumar Singh, learned counsel for respondent Electricity Department prays for and is granted a week's further time to complete his instructions.

2. List as fresh on 01.05.2024.

Order Date :- 16.4.2024

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(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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1. Shri Mukesh Kumar Singh, counsel appearing for the Electricity Department states that the respondents have decided to afford fresh opportunity of hearing to the petitioner as proper procedure was not followed in the past. He seeks time to enable the respondents to take remedial measures to undo the mistake.

2. Accordingly, adjourned to 17 May 2024, as a fresh case.

3. In the meantime, no coercive measure shall be taken against the petitioner in pursuance of the impugned demand notice.

Order Date :- 1.5.2024

Mukesh Kr.

(Kshitij Shailendra, J. (Manoj Kumar Gupta, J.)

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1. Heard Sri Vandeeep Nath, holding brief of Sri Akhilendra Yadav for the petitioner and Sri Mukesh Kumar Singh for the Electricity Department.
2. The petitioner has challenged a demand notice dated 9.2.2024, issued by Executive Engineer, Electricity Distribution Division (Nagar) Khand 4, Bareilly and has also prayed for a writ of mandamus directing the respondents not to take any coercive action against him in pursuance of the said notice.
3. The demand notice is for recovery of sum determined against the petitioner as electricity charges and penalty in a case of theft of electricity.
4. Sri Mukesh Kumar Singh, learned counsel appearing on behalf of the Electricity Department, has placed on record a communication received by him from the concerned Executive Engineer, according to which, the impugned demand notice has been withdrawn and now fresh order will be passed after affording opportunity of hearing to the petitioner.
5. In view of the above, no direction is required to be issued by this Court, except for the observation that the concerned respondent may pass fresh order after strictly following the procedure prescribed under the U.P. Electricity Supply Code, 2005.
6. The petition stands disposed of accordingly.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 17.5.2024

Jaideep/-